

Board Resolutions - Delegation of Authority

We, being all of the directors of the (**Company or {org.name}**), are in favour of the following resolutions:

Background

1. The NDIS Practice Standards require that there is a documented system of delegated responsibility and authority to another suitable person in the absence of a usual position holder in place.

Resolutions

Principals/Directors

1. The director(s) of the Company (**Board**) hereby delegate the day to day responsibility for the operation of the business of the Company to {org.primary_contact.name} and {org.signatory.name} as Principals/Directors of the Company. Without limiting the terms of the delegation, the delegation is in respect of the specific responsibilities, scope and limitations set out in the Principals/Directors Position Description and is otherwise unlimited and without limitation, except for such matters which are non-delegable by the Board. The role reports to the Board.
2. The Principals/Directors may:
 - a. delegate some or all of their duties and responsibilities to other qualified persons as they see fit (including those set out in the Principals/Directors Position Description);
 - b. create and delegate the roles reasonably required to successfully operate the business and provide high quality support and services to the Company's Clients (including NDIS participants). Such roles could include Support Workers, Support Coordinators, Registered Nurse and others as is reasonably required based on the scope of services and supports provided by the Company and the size and nature of the Company's operation; and
 - c. document those roles and responsibilities in writing in the accompanying Delegations Register, but is not required to do so.
3. In the absence of {org.primary_contact.name} and {org.signatory.name} for any reason, the Board hereby delegates the day to day responsibility for the operation of the business of the Company to:
 - a. the Company's other key management personnel collectively; or
 - b. if no such key management personnel exist or they are otherwise unavailable, unwilling or unqualified to take on the role, such qualified person as reasonably determined by the Board.

Unless otherwise agreed between {org.primary_contact.name} and {org.signatory.name} and the Board, the delegation in respect of the role will be on a temporary basis and shall operate until such time as {org.primary_contact.name} and {org.signatory.name} returns to the position or until such time as the board otherwise determines.

Without limiting the terms of the delegation, the delegation is in respect of the specific responsibilities, scope and limitations set out in the Principals/Directors Position Description (and is otherwise unlimited and without limitation, except for such matters which are non-delegable by the director(s)).

4. In making a determination under clause 3 in relation to the position of temporary Principals/Directors, the board shall consider the requirements of the Governance Policy and the Principals/Directors Position Description.

Delegations Register

5. Without limiting the terms of the above delegations but for ease of reference, the Board hereby approves the delegations set out in the accompanying Register of Delegations and permits the Principals/Directors to make such amendments to such Delegations Register as the Principals/Directors reasonably determines.

General

6. This document may be signed in any one or more counterparts and all of which together shall constitute one and the same document.

Signed as a correct record

Signature and Date

Name of Director

Signature and Date

Name of Director

Financial management			
Function	Preparation	Process	Approval
<i>Periodic Financial Reports and Tax Returns</i>	<i>Principals/Directors</i>	<i>Principals/Directors to prepare or review and approve plans prepared by external consultants</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Invoicing</i>	<i>Principals/Directors</i>	<i>Principals/Directors to approve all invoices</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>All payments including those within budget allocations, including regular bills</i>	<i>Principals/Directors</i>	<i>Principals/Directors to approve all payments</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Opening/closing of bank accounts</i>	<i>Principals/Directors</i>	<i>Principals/Directors to open/close bank accounts</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Monitor and make changes to financial systems</i>	<i>Principals/Directors</i>	<i>Principals/Directors to monitor and make changes to financial systems</i>	<i>Principals/Directors and Key Management Personnel</i>

Planning and reporting			
Function	Preparation	Process	Approval
<i>NDIS Registration Application</i>	<i>Principals/Directors</i>	<i>Principals/Directors to prepare or review and</i>	<i>Principals/Directors and Key Management Personnel</i>

		<i>approve application prepared by external consultants</i>	
<i>Business Plans and Budget</i>	<i>Principals/Directors</i>	<i>Principals/Directors to prepare or review and approve plans prepared by external consultants</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Business Plan and Budget Monitoring</i>	<i>Principals/Directors</i>	<i>Principals/Directors to monitor and implement business plans and budget</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Policies and Procedures</i>	<i>Principals/Directors</i>	<i>Principals/Directors to review policies and procedures in accordance with Policy Register</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Internal Audit</i>	<i>Principals/Directors</i>	<i>Principals/Directors to conduct Internal Audit in accordance with Quality and Continuous Improvement Policy</i>	<i>Principals/Directors and Key Management Personnel</i>

Legal Responsibilities			
Function	Preparation	Process	Approval
<i>Contracts/Leases</i>	<i>Principals/Directors</i>	<i>Principals/Directors to negotiate and enter into any contracts (including leases) on behalf of the Company</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Reporting to government agencies (ASIC, NDIS Commission, NDIA etc) as required including in accordance with</i>	<i>Principals/Directors</i>	<i>Principals/Directors to manage the preparation of reports/lodgements</i>	<i>Principals/Directors and Key Management Personnel</i>

<i>Legislation Register</i>			
<i>Monitoring amendments to legislation</i>	<i>Principals/Directors</i>	<i>Principals/Directors responsible for monitoring changes in legislation</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>External Audit (including with respect to NDIS provider registration)</i>	<i>Principals/Directors</i>	<i>Principals/Directors responsible for engaging and working with external auditors</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Management Meeting Agenda</i>	<i>Principals/Directors</i>	<i>Principals/Directors responsible for agenda</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Management Meeting Minutes</i>	<i>Principals/Directors</i>	<i>Principals/Directors responsible for minutes</i>	<i>Principals/Directors and Key Management Personnel</i>

<i>Human resources and rostering</i>			
<i>Function</i>	<i>Preparation</i>	<i>Process</i>	<i>Approval</i>
<i>Recruitment and selection</i>	<i>Principals/Directors</i>	<i>Undertaken by Principals/Directors</i>	<i>Principals/Directors</i>
<i>Position Descriptions</i>	<i>Principals/Directors</i>	<i>Written by Principals/Directors</i>	<i>Principals/Directors</i>
<i>Supervision of the Support Workers</i>	<i>Principals/Directors</i>	<i>Supervised by Principals/Directors</i>	<i>Principals/Directors</i>
<i>Management supervision of the</i>	<i>Principals/Directors</i>	<i>Undertaken by Principals/Directors</i>	<i>Principals/Directors</i>

{org.name} ABN {org.abn}
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<i>staff</i>			
<i>Performance appraisal of the staff</i>	<i>Principals/Directors</i>	<i>Undertaken by Principals/Directors</i>	<i>Principals/Directors</i>
<i>Clinical or other external supervision</i>	<i>Principals/Directors</i>	<i>Organised by Principals/Directors</i>	<i>Principals/Directors</i>
<i>Signing of Employment Contracts</i>	<i>Principals/Directors</i>	<i>Undertaken by Principals/Directors</i>	<i>Principals/Directors</i>
<i>Changes to Staff Conditions of Work or Salary Levels</i>	<i>Principals/Directors</i>	<i>Reviewed by Principals/Directors</i>	<i>Principals/Directors</i>
<i>Changes to Staffing Levels</i>	<i>Principals/Directors</i>	<i>Reviewed by Principals/Directors</i>	<i>Principals/Directors</i>
<i>Engagement of Relief Staff to cover for staff on leave</i>	<i>Principals/Directors</i>	<i>Undertaken by Principals/Directors</i>	<i>Principals/Directors</i>
<i>Staff leave</i>	<i>Principals/Directors</i>	<i>Undertaken by Principals/Directors</i>	<i>Principals/Directors</i>

Services and supports			
Function	Preparation	Process	Approval
<i>Implementation of</i>	<i>Support</i>	<i>Support</i>	<i>Principals/Directors and Key</i>

<i>Provision of Supports Policy</i>	<i>Coordinator/Support Workers</i>	<i>Coordinator/Support Workers to apply policy. Principals/Directors to oversee.</i>	<i>Management Personnel</i>
<i>Support Planning</i>	<i>Support Coordinator/Support Workers</i>	<i>Support Coordinator/Support Workers to undertake the support planning process. Principals/Directors to supervise.</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Monitor quality of services</i>	<i>Principals/Directors</i>	<i>Principals/Directors to monitor the quality of services</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Monitor intake and turn away of clients</i>	<i>Principals/Directors</i>	<i>Undertaken by Principals/Directors</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Regular reports on client feedback</i>	<i>Support Coordinator/Principal s/Directors</i>	<i>Undertaken by Support Coordinator and Principals/Directors</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Client complaints</i>	<i>Support Coordinator/Principal s/Directors</i>	<i>Managed by Principals/Directors</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Client Incidents</i>	<i>Support Coordinator/Principal s/Directors</i>	<i>Managed by Principals/Directors</i>	<i>Principals/Directors and Key Management Personnel</i>
<i>Referrals</i>	<i>Support Coordinator/Principal s/Directors</i>	<i>Managed by Principals/Directors</i>	<i>Principals/Directors and Key Management Personnel</i>